

COMMITTEE ON REGULATORY AFFAIRS AND GOVERNMENT EFFICIENCY
SENATE AMENDMENTS TO S.B. 1286
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 32-2240.03, Arizona Revised Statutes, is amended
3 to read:

4 32-2240.03. Veterinarian client patient relationship through
5 electronic means; consent; prescriptions; scope
6 of practice

7 A. Notwithstanding any other law and except for an animal that is
8 used in commercial food production that is regulated under title 3, a
9 veterinarian may establish a veterinarian client patient relationship
10 through electronic means if all of the following apply:

11 1. The veterinarian is licensed pursuant to this chapter or holds a
12 permit pursuant to section 32-2217.01.

13 2. The veterinarian obtains informed consent from the client,
14 including an acknowledgement that the standards of care prescribed by this
15 chapter apply to in-person visits and visits through electronic means.
16 The veterinarian shall maintain for at least three years documentation of
17 the consent described in this paragraph.

18 3. The veterinarian provides the client with the veterinarian's
19 name and contact information and secures an alternate means of contacting
20 the client if the electronic means is interrupted. The electronic or
21 written record provided to the client after the ~~telemedicine~~ visit **THROUGH**
22 **ELECTRONIC MEANS** must include the veterinarian's license number.

23 4. Before conducting an evaluation of the patient through
24 electronic means, the veterinarian advises the client of all of the
25 following:

26 (a) The veterinarian may ultimately recommend an in-person visit.

27 (b) The veterinarian is prohibited by federal law from prescribing
28 some drugs or medications based only on an electronic examination.

1 (c) The appointment through electronic means may be terminated at
2 any time.

3 5. The veterinarian is able to recommend the client to a local
4 veterinarian who can see the animal in person. The client has the option
5 to choose an in-person visit.

6 B. A veterinarian may prescribe drugs or medications after
7 establishing a ~~veterinary~~ VETERINARIAN client patient relationship through
8 electronic means, except that:

9 1. Prescriptions based only on an electronic examination ~~[FOR~~
10 ~~NON-ANTIMICROBIAL DRUGS]~~ may be initially issued for up to ~~fourteen~~
11 ~~[SIXTY]~~ ~~[THIRTY]~~ days and may be renewed one time for up to ~~fourteen~~
12 ~~[SIXTY]~~ ~~[THIRTY]~~ days with an additional electronic examination.

13 [2. PRESCRIPTIONS BASED ONLY ON AN ELECTRONIC EXAMINATION FOR
14 ANTIMICROBIAL DRUGS MAY BE ISSUED ONLY FOR A PERIOD OF UP TO FOURTEEN DAYS
15 OF TREATMENT. THE VETERINARIAN MAY NOT ISSUE ANY FURTHER ANTIMICROBIAL
16 DRUG PRESCRIPTIONS, INCLUDING ANY REFILLS, FOR THE SAME ANIMAL PATIENT
17 UNLESS THE VETERINARIAN PERFORMS AN IN-PERSON EXAMINATION OF THE ANIMAL
18 PATIENT.]

19 ~~[2.]~~ [3.] Prescriptions based only on electronic examinations and
20 that have been renewed once may not be renewed again without an in-person
21 examination.

22 ~~[3.]~~ [4.] The veterinarian must notify the client that some
23 prescription drugs or medications may be available at a pharmacy and, if
24 requested, the veterinarian will submit a prescription to a pharmacy that
25 the client chooses.

26 ~~[4.]~~ [5.] The veterinarian may not order, prescribe or make
27 available a controlled substance as defined in section 36-2501 unless the
28 veterinarian has performed an in-person physical examination of the
29 patient or made medically appropriate and timely visits to the premises
30 where the patient is kept.

31 ~~[5.]~~ [6.] The veterinarian shall prescribe all drugs and
32 medications in accordance with all federal and state laws.

33 C. Veterinarian services provided through electronic means are
34 subject to the rules adopted pursuant to section 32-2275 relating to the
35 practice of veterinary medicine.

36 Enroll and engross to conform

37 Amend title to conform

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C: JR
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